Date of Request: December 21, 2020 Request No. SANE-23
Due Date: January 4, 2020 NG Request No. NG-1487

KEYSPAN GAS EAST CORPORATION d/b/a NATIONAL GRID
THE BROOKLYN UNION GAS COMPANY d/b/a NATIONAL GRID NY
Case Nos. 19-G-0309 & 19-G-0310
Gas Utilities Rates

Request for Information

FROM: Kim Fraczek and Lee Ziesche

TO: National Grid

SUBJECT: Gas Infrastructure

Request:

1. In SANE-20, Response 1, the Companies state that they did not obtain a certificate of environmental compatibility and public need for the Metropolitan Reliability Infrastructure (MRI) Project, pursuant to Article VII of the Public Service Law, "because it was not required for the project." Why was this certificate, in the Companies' view, not required for the MRI Project?

2. In SANE-20, Response 2, the Companies state that they "did not perform a SEQRA review" for the MRI Project "because it was not applicable under the circumstances." Why was SEQRA review, in the Companies' view, "not applicable under the circumstances"? What were the circumstances that, in the Companies' view, rendered SEQRA review inapplicable?

3. In DPS-1091, Response 1c, the Companies state "Tie in work is planned to support having Phases 1-4 in service by October 2020." for the MRI Project.
   a. Was that anticipated in service date met?
   b. If not, when do the Companies anticipate Phases 1-4 of the MRI Project will be in service?

4. Provide the amount of capital expenditures the Companies spent on the MRI Project in 2020.

Response:

1. A certificate of environmental compatibility and public need ("CECPN") is only required for the siting of major utility transmission facilities under Article VII of the Public Service Law ("PSL"). PSL § 120 defines a "[m]ajor utility transmission facility" and

explicitly excludes from the definition " any such transmission line which is located wholly underground in a city or wholly within the right of way of a state, county or town highway or village street as those terms are defined in article one of the highway law and article six of the village." As this project was within the public right of way, neither an Article VII nor a CECPN were required.

2. 6 NYCRR § 617.5(c) lists Type II Actions that do not require further review under SEQRA. This project did not require a discretionary decision by any state or local agency and therefore was exempt from SEQRA review under 6 NYCRR § 617.5(c)(25).

3.
    a. The anticipated in-service date of October 2020 was not met.
    b. MRI Phases 1-4 were placed in service in November 2020.

4. Capital expenditures for the MRI Project totaled $48.052 million for the period April-November 2020.

Name of Respondent:
Peter Metzdorf
Sam Thakkar

Date of Reply:
January 4, 2020